

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, June 11, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26363 against Police Officer Marc Hummel, Tax Registry No. 950604. This case was conferenced on June 3, 2025, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of Training, after Police Officer Hummel accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated August 22, 2023. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

DISAPPROVED

SEP 25 2025

JESSICA S. TISCH
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

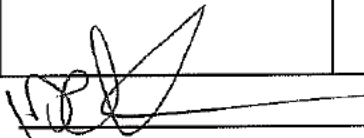
CASE NO.
C-031912BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, HUMMEL	FIRST MARC	M.I.	COMMAND 028
SHIELD NO. 23029	TAX REGISTRY NO. 950604	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Marc Hummel, on or about May 30, 2020, at approximately 2355, while assigned to 028 PCT and on duty, in the vicinity of § 87(2)(b) New York County, intentionally used force and attempted to cause injury to § 87(2)(b) by pushing § 87(2)(b) without police necessity.	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.
2. Police Officer Marc Hummel, on or about May 30, 2020, at approximately 2355, while assigned to 028 PCT and on duty, in the vicinity of § 87(2)(b) New York County, intentionally used force and attempted to cause injury to § 87(2)(b) by pushing § 87(2)(b) without police necessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER07/15/25
DATE**POLICE COMMISSIONER'S APPROVAL**☐ Approved☒ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER9/25/25
DATE



POLICE DEPARTMENT

September 18, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202003791 (Incident Date: May 30, 2020) involving Police Officer Marc Hummel, Tax No. 950604 (DADS Case No. 2022-26363/ PODS Case No. C-031912)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Marc Hummel and determined that no disciplinary action is warranted regarding the alleged incident.

In this matter, the CCRB alleged that Police Officer Hummel committed two counts of New York Penal Law § 110/120.00, Attempted Assault in the Third Degree. Surveillance footage of the incident captured the entirety of the officer's actions underlying the allegations. While Police Officer Hummel did push the complainant on two occasions the complainant never lost his balance or sustained an injury as a result. There was no evidence that the complainant was physically injured or suffered substantial pain nor was Police Officer Hummel's culpable mental state established. After reviewing the evidence, the Police Commissioner finds that, although Police Officer Hummel did push the complainant in this incident, his actions do not rise to the level of criminality.

Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action for the alleged misconduct.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 25, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Marc Hummel
Disciplinary Case No.: 2022-26363 / PODS Case No.: C-031912

Dear Commissioner Tisch:

I am writing in response to the letter from Assistant Chief Michael P. Baker, dated September 18, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that no disciplinary action is warranted regarding the alleged incident” involving Police Officer Hummel. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Assistant Chief Baker’s notification. Assistant Chief Baker stated that after reviewing the evidence and “although Police Officer Hummel did push the complainant in this incident, his actions do not rise to the level of criminality.” CCRB disagrees with your recommendation and respectfully requests that you impose CCRB’s recommendation of Formalized Training for Police Officer Hummel’s misconduct in this case.

It is undisputed that Police Officer Hummel pushed § 87(2)(b) not just once, but twice. This misconduct is clearly captured on surveillance footage. Police Officer Hummel stated that he did not recall why he pushed § 87(2)(b) but stated that he might have done so because he wanted to create a safe distance between § 87(2)(b) and the officers, and because he wanted § 87(2)(b) to leave the location. However, this is not an appropriate justification for pushing § 87(2)(b). The surveillance video footage established that Police Officer Hummel approached § 87(2)(b) on both occasions while § 87(2)(b) back was facing Police Officer Hummel and seems to be inconsistent with an obvious safety concern and thus does not justify the push on the basis that § 87(2)(b) stood near the officers. While it is unclear from the video footage, and the civilian and the officers’ statements, whether § 87(2)(b) said anything threatening to the officers, the video footage does not depict § 87(2)(b) acting physically, much less violently or aggressively, towards Police Officer Hummel or any other officer, and thus does not justify pushing § 87(2)(b) especially when Police Officer Hummel acknowledged that § 87(2)(b) was not under arrest.

Also, Police Officer Hummel’s justification that he pushed § 87(2)(b) as an attempt to get § 87(2)(b) to leave the location falls flat. The surveillance video footage established that § 87(2)(b)

§ 87(2)(b) was not the only civilian who remained on the sidewalk after the officers approached and appeared to ask everyone to leave, and that § 87(2)(b) and § 87(2)(b) appeared to be the only two (2) civilians who appeared to say something to Police Officer Hummel and the officers as they walked away and were ultimately the ones Police Officer Hummel used force against. Given this, it seems that Police Officer Hummel pushed § 87(2)(b) because of something § 87(2)(b) said to Police Officer Hummel, and not because § 87(2)(b) remained at the location. Therefore, Police Officer Hummel's use of force by pushing § 87(2)(b) twice was thus unreasonable and unjustifiable.

Despite the evidence in this case and considering Police Officer Hummel's history with the Department, CCRB recommended the penalty of Formalized Training to address this misconduct. This downward deviation was based on the facts that Police Officer Hummel was willing to accept responsibility for this misconduct, has been a member of the New York City Police Department for almost fourteen (14) years and while Police Officer Hummel has been disciplined before, his last disciplinary issue was over ten (10) years ago. CCRB also acknowledges that Police Officer Hummel sustained extensive injuries related to this incident, but § 87(2)(b) did not sustain any injuries related to this interaction with Police Officer Hummel. Additionally, this negotiated penalty was accepted by Assistant Deputy Commissioner of Trials Anne Stone during the plea conference held on June 3, 2025.

Based upon the foregoing, CCRB requests that the negotiated penalty of Formalized Training be imposed for all specifications.

Respectfully submitted,

Andre D. Applewhite

Andre D. Applewhite

Chief Prosecutor

NYC Civilian Complaint Review Board

CC: Stuart London, Esq.